

Meet and Confer

Although the Court need not go any further, we will pause briefly to note that the meet and confer process was also incomplete. Again, the legislature does not require meeting and conferring so that parties can spend time and postage (or internet bandwidth) merely sending a missive in each direction without actually communicating. The legislature requires meeting and conferring so that the parties do not waste their own time and resources and that of the courts in bringing unripe motions or motions that could be resolved by a meeting of the minds. While the Discovery Act does not explicitly require verbal communications, it is rarely a bad idea for attorneys to pick up the phone or the equivalent and speak about the issues. Once discovery is triggered by the completion of mediation, there is some considerable conversation that these parties need to have about what is reasonable, necessary, and appropriate. Plaintiff cannot serve massively overbroad demands in the hopes that there is a needle in a haystack; nor can Defendant pretend that a discovery request that overlaps with privileged and confidential information is therefore unanswerable with non-privileged and non-confidential information. Parties must endeavor to define words reasonably, and respond with reasonable definitions of there is vagueness.

Conclusion

Because, pursuant to Code of Civil Procedure section 871.26, this case has not yet mediated properly, Plaintiff's Motion is **denied**.

Law & Motion

Add On

20. 9:00 AM CASE NUMBER: C23-02528

CASE NAME: FLUENCE ENERGY, LLC VS. DIABLO ENERGY STORAGE, LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION ATTENDANCE OF DEFENDANT'S PERSON(S) MOST QUALIFIED**

FILED BY: FLUENCE ENERGY, LLC

TENTATIVE RULING:

Plaintiff Fluence Energy LLC brings this Motion to Compel Deposition Attendance of Defendant's Person(s) Most Qualified and to Produce Documents; Request for Sanctions against Defendant Diablo Energy Storage LLC. Due to a court calendaring error, the Court has had to prepare for this motion on an expedited basis, so this tentative ruling will be more summary than it otherwise may have been. (The Court has been able to review all materials on an expedited basis.)

Fluence served a deposition notice for Diablo's Person Most Qualified with 29 topics. At this time, there appear to be 16 topics at dispute. The areas are topic numbers 1, 4, 5, 6, 7, 11, 14, 16 (except for activities with related to the preparation of the Emergency Response Plan in support of Fluence's submissions to the Fire Department), 17, 18, 19, 20, 22, 23, 28, and 29.

Attached to the deposition notice was a request for production of documents related to the Notice. The parties agree that this request was *otherwise* beyond the period of time set by the Court's scheduling order for written discovery. Request No. 1 was for documents generated or reviewed or relied upon when responding to the topics in the deposition notice. Request No. 3 was for documents related to delay claims made to Diablo on battery storage projects for the same reasons and during the same time period as the delays for this Project. Diablo proposed that the first request could be satisfied by the deponents bringing the documents they reviewed to the depositions. Fluence rejected this proposal. The additional requests were beyond the court's then-effective discovery order.

Diablo did not produce witnesses and did not file a Motion to Quash. Diablo did, however, assert timely objections.

For the vast majority of the disputed topics, Diablo asserts that the requests cover areas that are not relevant. For many, they also assert that, in other depositions, Fluence could have explored these areas but declined to do so. That argument ignores that the resulting questions would have been beyond the scope of the deposition for which that individual was testifying. Fluence's failure to explore PMQ areas in individual depositions or explore a topic not agreed-to in a deposition of a PMQ for a different topic does not foreclose their ability to take those depositions at this time.

After a review of the parties' arguments the Court orders as follows:

Topic 5 – Diablo must produce a responsive witness

Topic 6 – Diablo must produce a witness to testify as to facts that form the basis of Diablo's battery availability liquidated damage claims

Topic 14 – this request is denied

Topic 16 – Diablo must produce a witness to testify as to Diablo's responsibilities or obligations relating to permitting under the parties' contract

Topics 17-20 – Diablo must produce a responsive witness. If Diablo will not be pursuing previously pled claims, theories, or defenses, it must so state either by amending pleadings or in verified discovery responses—thereby foreclosing such theories at trial. Finally, while some of the other documents may be slightly more tangential, they are within the permissible scope of discovery.

Topics 22 & 23 – Diablo must produce a responsive witness. If no such evaluations occurred (Topic 22), then Diablo must so state and thereby avoid producing a witness.

As explained above, Fluence's Motion is **granted in part and denied in part**. The request for sanctions is denied.

21. 9:00 AM

CASE NUMBER: C23-02528

CASE NAME: FLUENCE ENERGY, LLC VS. DIABLO ENERGY STORAGE, LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION OF DOCUMENTS IN COMPLIANCE WITH DISCOVERY RESPONSES BY A DATE CERTAIN**